

OFFICE OF THE SECRETARY

PO Box 942883
Sacramento, CA 94283-0001



The Honorable Wynne S. Carville
Judge of the Superior Court
County of Alameda
1221 Oak Street Dept. 21
Oakland, CA 94612

Re: Larry Latimore Jr.
CDCR No: G50013
Case No: H42385
Date of Sentence: February 9, 2009

Dear Honorable Wynne S. Carville:

The purpose of this letter is to provide the court with the authority to resentence inmate Larry Latimore Jr., G50013, pursuant to Penal Code (PC) Section 1170, Subdivision (d)(1). PC Section 1170, Subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation (CDCR), the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Latimore has remained disciplinary free since his arrival to CDCR, with the exception of two Rules Violation Reports (RVRs), the last being on May 1, 2013, for Over Familiarity. Inmate Latimore has received seven Laudatory Chrono's from various staff and received a Certificate of Achievement relative to Vocational Auto Body and Paint in Major Body/Frame Repair. He has received positive responses from various supervisors relative to job/education assignments. Inmate Latimore is deemed a conscientious worker and uses his time wisely. He also has demonstrated leadership skills.

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Having reviewed the enclosed documentation it appears that inmate Latimore's sentence warrants the attention of the court. Pursuant to PC Section 1170, Subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


(for) RALPH M. DIAZ
Secretary

Enclosures:

Abstract of Judgment
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Chad Finke, County Court Executive Officer
Alameda County District Attorney's Office
Alameda County Public Defender's Office